City Clerk's Office
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County of Santa Clara Registrar of Voters

BALLOT MEASURE PRIMARY ARGUMENT FORM

This **Ballot Measure Primary Argument Form** must be submitted **for all ballot measure PRIMARY ARGUMENTS**, with required signatures and author information. The County of Santa Clara Office of the Registrar of Voters allows electronic submission of documents if the scanned copy is clear and readable. You may email your completed form and attach the primary argument in Microsoft Word version to candidateservices@rov.sccgov.org. Any errors submitted on the form or primary argument will be printed in the County Voter Information Guide and/or ballot exactly as submitted. A proof will be sent to the primary filer for confirmation that it matches the argument as submitted—no other corrections will be accepted.

Assembly Bill 1416 was signed by the Governor and is effective as of January 1, 2023. This legislation (Elections Code section 9170) allows primary argument signers to provide a list of individuals, associations, nonprofit organizations, or businesses that are signers or are listed within the text of the argument who support or oppose a ballot measure to be listed under the ballot label. If you wish to submit a list of supporters or opponents, please complete Section 4 on page 5 of this form by providing a list of names of the individuals, associations, nonprofit organizations, and/or businesses to be listed as supporters or opponents. A sample ballot label is provided on page 9, Section 6: Appendix C.

Office Use Only

FILED
AUG 11 2026
REGISTRAR OF VOTERS
COUNTY OF SANTA CLARA
By [redacted] Deputy

Time/Date Stamp

Date of Election: November 3, 2026 General Election
Jurisdiction: CITY OF MILPITAS

Primary Argument due date (E-84): August 11, 2026
Examination Period (E-83 to E-74): August 12, 2026 to August 21, 2026

Rebuttal Argument due date (E-77): August 18, 2026
Examination Period (E-76 to E-67): August 19, 2026 to August 28, 2026

Measure Letter K (if available – letters will be assigned after 5:00 p.m. on E-88)

Type Argument

☑ Primary Argument in Favor / Proponent	☐ Primary Argument Against / Opponent

Declaration Related to Proponent/Opponent Primary Arguments
(Elections Code §§ 9161, 9164, 9167, 9170, 9501, 9501.5, 9504, 9600)

☑ **I am an Author of the Proponent Primary Argument** (noted above) for **Measure** K being submitted. I support this measure.

☐ **I am an Author of the Opponent Primary Argument** (noted above) for **Measure** _____ being submitted. I oppose this measure.

SIGNER SECTION

The Signer of the Primary Argument is a person whose name is listed and published in the County Voter Information Guide (CVIG) in the election materials after the argument as one of the signatories. State law allows for up to five signers. Signers may also be Filers, although they do not have to be. Signers sign to endorse the argument under which their signature appears. Signers sign the argument submission form, attesting under penalty of perjury that they meet the requirements to sign an argument.

* Required information.

I am a **SIGNER** of the primary argument: ☑ Yes / ☐ No

AS A SIGNER: **I am a:** ☐ Registered Voter in the District ☐ Governing Board Member ☑ * Principal Officer of an Organization

*** I have attached one of the following items listed on Page 2 to this form.**

*** My GENDER is:** ☑ Masculine ☐ Feminine ☐ Androgynous or Non-binary ☐ Other: _____

*** My SIGNING ORDER** on the Argument text to be published is: ☑ **1** / ☐ **2** / ☐ **3** / ☐ **4** / ☐ **5** *(please check one)*

*** My name as a SIGNER** (signature to be printed with the primary argument) is: Mario Bens
(do not include degrees or titles; print or type signature in upper- and lower-case font)

*** TITLE OF SIGNER** (to be printed with the primary argument) is: IAFF Local 1699 president
(limited to one title only; do not include descriptors; print or type title in upper- and lower-case font)

SIGNATURE ➡	Under penalty of perjury, I attest the above information meets the required criteria for an individual or for an organization or bona fide association of citizens for purposes of submitting an argument:
	[redacted]
	ROV ONLY ACCEPTS WET OR DOCUSIGNED SIGNATURES (signatures will be redacted prior to posting online)

ARGUMENT IN FAVOR OF CITY OF MILPITAS MEASURE K

Start of argument

Let's keep our neighborhoods safe and clean by making large businesses and corporations pay their fair share: Vote Yes on K!

Measure K does not raise taxes for residents or homeowners.

Right now, small and locally owned businesses have a higher tax rate than larger, wealthier corporations – in some cases, over 70 times more.

This is simply not fair! And we have the power to make it right.

Voting Yes on K fixes this inequity by ensuring large corporations finally pay their fair share for the essential services we all rely on.

Yes on K reforms our business tax structure that's over 50 years old to make it fair for small business, while providing our community with local funding to maintain our quality of life – without raising taxes for residents.

Yes on K maintains our vital city services and fiscal stability.

Yes on K maintains emergency medical and ambulance services.

Yes on K replaces aging water and sewer lines, and repairs storm drains.

Yes on K keeps neighborhood streets and sidewalks clean and well-maintained and removes blight and illegal dumping.

With Washington and Sacramento politicians cutting funding for our city, our critical services – including 911 emergency response and street repair – are at stake.

That's why it's more important than ever that we remain self-reliant. **Every penny of Measure K is for our community and must be reinvested locally to benefit Milpitas residents.** No money can be taken by out-of-town politicians.

Measure K continues Milpitas' high standards for **fiscal accountability** and transparency with independent audits and public disclosure of all spending.

Join Milpitas small business owners, firefighters, police officers, community leaders and a unanimous City Council in voting Yes on K!

For official information about Measure K: www.Milpitas.gov

***

End of argument

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Primary Arguments Against (2)

ARGUMENT IN FAVOR OF CITY OF MILPITAS MEASURE K

[Argument starts here]

Let's keep our neighborhoods safe and clean by making large businesses and corporations pay their fair share: Vote Yes on K!

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Right now, small and locally owned businesses have a higher tax rate than larger, wealthier corporations – in some cases, over 70 times more.

This is simply not fair! And we have the power to make it right.

Voting Yes on K fixes this inequity by ensuring large corporations finally pay their fair share for the essential services we all rely on.

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Yes on K reforms our business tax structure that's over 50 years old to make it fair for small business, while providing our community with local funding to maintain our quality of life – without raising taxes for residents.

Yes on K maintains our vital city services and fiscal stability.

Yes on K maintains emergency medical and ambulance services.

Yes on K replaces aging water and sewer lines, and repairs storm drains.

Yes on K keeps neighborhood streets and sidewalks clean and well-maintained and removes blight and illegal dumping.

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With Washington and Sacramento politicians cutting funding for our city, our critical services – including 911 emergency response and street repair – are at stake.

That's why it's more important than ever that we remain self-reliant. **Every penny of Measure K is for our community and must be reinvested locally to benefit Milpitas residents.** *No money can be taken by out-of-town politicians.*

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Measure K continues Milpitas' high standards for **fiscal accountability** *and transparency with independent audits and public disclosure of all spending.*

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Join Milpitas small business owners, firefighters, police officers, community leaders and a unanimous City Council in voting Yes on K!

For official information about Measure K: www.Milpitas.gov

***

[Argument ends here]

Words: 262